

Tentative Rulings
July 6, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

20. *Perez v. Workforce Personnel, et al*, Case No. CIV2220822
Plaintiff's Motion for Preliminary Approval of Class Action Settlement
7/6/26, 1:30 p.m., Dept. S-17

The Court would **CONTINUE** to allow for amendment and supplemental filings.

Importantly, the original Plaintiff in this matter, Margarita Perez, is still an active participant in this case. Yet, troublingly, she is *not* a signatory to the purported settlement agreement nor has she submitted a declaration in support of her position as a purported representative plaintiff. (See Spivak Decl., Exh. A [Settlement].) Rather, the settlement agreement sets forth only Plaintiff Huerta as a class representative – despite the fact that she was not added into the case until the most recent amendment to the Complaint on November 14, 2025. (First Amended Complaint [FAC].) There is no explanation for Plaintiff Perez's wholesale disappearance from this matter or any treatment on why relation-back to Plaintiff Perez's LWDA notice [September 7, 2022] or original filing [September 19, 2022] is appropriate when she is not part of this settlement.

Further, the Court notes that the declaration submitted by Plaintiff Huerta does *not* discuss her adequacy as a class representative. Rather, it simply sets forth that she has given up rights in furtherance of her case and is therefore entitled to an enhancement fee. The Court, obviously, is obligated to determine – among other things – that the purported class representative adequately represents the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.) As currently constituted, the declaration fails to provide enough information to allow the Court to reach that conclusion.
